

PROFORMA

BANK GUARANTEE FOR CD

(To be furnished on Rs.100/- Stamp Paper – purchased by issuing Bank)

DEED OF GUARANTEE

THIS DEED OF GUARANTEE executed at Chennai on this the day of 201 between
_____ constituted under the Banking Companies Act 1956
(Acquisitor and transfer of undertakings) represented by its Authorised Signatory _____ Chief Manager
and _____ Assistant Manager, having its office at

_____ hereinafter called and
referred to as the "GUARANTOR" of the ONE PART;

and

CHENNAI METROPOLITAN DEVELOPMENT AUTHORITY a statutory body constituted under the Tamil Nadu
Town and Country Planning Act, 1972 represented by its Member Secretary, having its office at No.1, Gandhi Irwin
Road, Egmore, Chennai 600 008 hereinafter called and referred as "CMDA" of the OTHER PART;

The terms "GUARANTOR" and the "CMDA" shall mean and include all their respective heirs, executors,
administrators, authorized officials, legal representative and assigns wherever the context so means.

WHEREAS M/s. _____ A Company incorporated under the Company act having its
office at _____
hereinafter referred to as "THE APPLICANT" has applied for Planning Permission for development of the property
situated at to CMDA.

WHEREAS the CMDA has directed the applicant to deposit a sum of Rs. _____ (Rupees
_____ only) as Caution Deposit in their letter reference No. _____
dated _____ 201.

AND WHEREAS the applicant has come forward to furnish Bank Guarantee for a sum of Rs. _____
(Rupees _____ only) in lieu of Caution Deposit by Cash.

NOW THIS DEED OF GUARANTEE WITNESSETH AS FOLLOWS:

1. The GUARANTOR hereby undertakes and guarantees to pay to CMDA the amount of Rs. _____
(Rupees _____ only) hereinafter referred to as the "GUARANTEED
AMOUNT" for and on behalf of the applicant in the manner provided below.
2. The GUARANTEE shall be enforceable by CMDA on demand after breach of planning permission condition by
M/s. _____ before the expiry of the period specified herein.
3. This GUARANTEE shall be in force for an initial period of 5 years from the _____ to _____
and the guarantor undertakes to renew the same as and when a request is received from the CMDA to that effect
within the initial validity period, for any further period not exceeding in all ten years.
4. The Guarantor hereby undertakes to pay, without question to the CMDA the guaranteed amount in full within
three days after receipt of a letter from CMDA stating that the building put up by the applicant which is the subject
matter of this Guarantee has violated its usage for which the plan sanctioned by CMDA and the building is utilized
for Non-IT purpose during the period and the Guaranteed amount has thus become payable.
5. Notwithstanding anything contained above, the Guarantor hereby agrees, without question to transfer the
Guaranteed amount to CMDA's account invoking the Bank Guarantee in favour of CMDA on or before expiry of the

Bank Guarantee unless Confirmation Certificate from M/s. ELCOT certifying that the construction is put into continuous usage for IT purpose for the said Five Years for refund of Caution Deposit.

6. The GUARANTOR fails to honour the guarantee as aforesaid for any reason whatsoever the Guarantor shall pay to the CMDA, interest at 24% p.a. of daily rate along with the guaranteed amount and this Guarantee shall be deemed to be valid and extended upto the date on which all the liabilities are fully discharged.

7. The executants declare that he is empowered and authorized to execute this guarantee on behalf of the GUARANTOR.

8. The GUARANTEE has been duly recorded in the books of account of the GUARANTOR and may be cited as B.G. No. _____ issue date: _____

9. For any dispute arising out of this guarantee the jurisdiction shall be that of the Courts of Chennai City.

10. This GUARANTEE shall be unconditional and irrevocable.

IN WITNESS WHEREOF THE GUARANTOR HAS SIGNED AND DELIVERED THIS DEED OF GUARANTEE ON THE DAY, MONTH AND YEAR FOR ABOVE WRITTEN.